IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION CA. (CAA) – 30(ND)/2025

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT

BETWEEN

COGENT HOSPITALITY PRIVATE LIMITED

..... Applicant Company No.1/Transferor Company No.1

AND

COMAX HOSPITALITY PRIVATE LIMITED

..... Applicant Company No.2/Transferor Company No.2

AND

STELLAR CONCEPTS PRIVATE LIMITED

..... Applicant Company No.3/Transferor Company No.3

AND

TRIMEX FOODS PRIVATE LIMITED

..... Applicant Company No.4/Transferee Company No.1

AND

TRES BON EATS PRIVATE LIMITED

.... Applicant Company No.5/Transferee Company No.2

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 30.06.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Rajeev K Goel, Mr. Kartikeya Goel, Advs.

Court Commissioner : Ms. Riya Palnitkar, Advocate

ORDER

PER: DR. SANJEEV RANJAN, MEMBER (TECHNICAL)

1. This is a 1st Motion Application jointly filed under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016, and other applicable provisions, if any, in connection with the proposed Composite Scheme of Arrangement of Cogent Hospitality Private Limited, Comax Hospitality Private Limited, Stellar Concepts Private Limited, Trimex Foods Private Limited and Tres Bon Eats Private Limited, to obtain orders to dispense with/convene meetings of Equity Shareholders, Secured Creditors and Un-secured Creditors of the Applicant Companies for considering and approving the aforesaid Scheme of Arrangement.

2. The Ld. Counsel for the Applicant has given the brief description of the Applicant Companies, which are as follows:

a) The Applicant No. 1/Transferor Company No.1 namely Cogent Hospitality Private Limited, having CIN: U74999DL2017PTC322654 was incorporated on 24.08.2017 under the provisions of the Companies Act, 2013, as a Private Limited Company vide Certificate of Incorporation issued by the Registrar of Companies, NCT Delhi & Haryana, New Delhi.

The registered office of Applicant Company No. 1 is situated at B-11/1, Okhla Industrial Area Phase II, New Delhl-110020.

The Authorized Share Capital of the Applicant No.1 Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10 each. The present Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10 each.

b) The Applicant No. 2/Transferee Company No.2 namely Comax Hospitality Private Limited bearing CIN: U74999DL2018PTC332856 was incorporated on 20th April 2018 under the provisions of the Companies Act, 2013, as a Private Limited Company vide Certificate of Incorporation issued by the Registrar of Companies, NCT Delhi & Haryana, New Delhi. The registered office of Applicant Company No. 2/Transferee Company is situated at B-11/1, Okhla Industrial Area Phase II, New Delhi-110020.

The Authorized Share Capital of the Company is Rs. 1,01,00,000 divided into 10,10,000 Equity Shares of Rs.10 each. The present Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 8,51,82,790/- divided into 85,18,279 Equity Shares of Rs. 10/- each.

c) The Applicant No. 3/Transferor Company No.3 namely Stellar Concepts Private Limited bearing CIN: U55101DL2009PTC194782 was incorporated on 30th September 2009, under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation Issued by the Registrar of Companies, NCT of Deihl & Haryana, New Delhi.

   The Registered Office of the Applicant No.3 is situated at B-11/1, Okhla Industrial Area Phase II, New Delhi-110020.

   The present Authorised Share Capital of the Applicant No. 3 is divided into 1,00,000 Equity Shares of Rs. 10 each. The present Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000 divided Into 10,000 Equity Shares of Rs.10 each.

d) The Applicant No. 4/Transferee Company No. 1 namely Trimex Foods Private Limited bearing CIN: U15549DL2019PTC343963 was incorporated on 8th January, 2019 under the provisions of the Companies Act, 2013, as a private limited company vide Certificate of Incorporation issued by the Registrar of Companies, Central Registration Centre on behalf of the jurisdictional Registrar of Companies, NCT Delhi & Haryana, New Delhi.

   The Registered Office of the Applicant No.4 is situated at B-11/1, Okhla Industrial Area Phase II, New Delhi-110020.

   The present Authorised Share Capital of the Applicant No. 4 is Rs. 6,85,00,000 divided into 66,80,000 Equity Shares of Rs. 10 each aggregating Rs.6,68,00,000 and 1,70,000 Preference Shares of Rs. 10 each aggregating Rs. 17,00,000. The present Issued, Subscribed and Paid-up Share Capital of the Company Rs.17,01,970 divided into 1,70,197 Equity Shares of Rs. 10 each.

e) The Applicant No. 5/Transferee Company No. 2 namely Tres Bon Eats Private Limited bearing CIN: U56301DL2025PTC440863 was incorporated on 8th January, 2025, under the provisions of the Companies Act, 2013, as a private limited company vide Certificate of Incorporation Issued by the

Registrar of Companies, Central Registration Centre on behalf of the jurisdictional Registrar of Companies, NCT Deihl &. Haryana, New Delhi. The Registered Office of the Applicant No.5 is situated at B-11/1, Okhla Industrial Area Phase II, New Delhl-110020.

The present Authorised Share Capital of the Applicant No. 5 is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10 each. The present Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10 each.

3. The Affidavits in support of the present application have been sworn by Mr. Vaibhav Kaushish (DIN: 09507209), son of Mr. Suresh Kumar Kaushish, Director of Applicant No. 1/Transferor Company No.1, by Mr. Gurpreet Singh Gulri (DIN: 00948052), son of Mr. Trilochan Singh, Director of Applicant Company No. 2/Transferor Company No.2, by Mr. Dipanjt Singh (DIN: 02756012), son of Mr. Gunjit Singh, Director of Applicant Company No. 3/Transferor Company No.3, by Mr. Rajiv Singh Saluja (DIN: 02633683), son of Mr. Amrik Singh Saluja, Director of Applicant No.4/ Transferee Company No. 1 and by Gurpreet Singh Gulri (DIN: 00948052), son of Mr. Trilochan Singh, Director of Applicant No.5/Transferee Company No.2 who have been duly authorized vide board resolutions of all the Applicant Companies. All the Affidavits are filed with the application.

4. The Board of Directors of all the Applicant Companies in their respective meeting held on 23rd January, 2025 considered and unanimously approved the proposed Scheme of Arrangement. Copies of the Board Resolutions have been enclosed with the 1st motion joint Application being filed with this Tribunal.

5. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating their object clauses as well as the latest audited annual financial report for the year ended 31.03.2024. Copy of the respective provisional un-audited financial statements as on 30.09.2024 have been filed by Applicant Companies No.1 to 4 as required under section 232(2)(e) of the Companies Act, 2013. The Applicant No. 5 was incorporated

on 08.01.2025 and will prepare its first Audited Financial Statements for the Financial Year ending 31.03.2025. Therefore, have prepared the un-audited Financial Statements (Provisional) for the period ended on 21.01.2025.

6. The Applicant Companies have filed the true copy of the proposed Scheme of Amalgamation, the benefits of which are as follows:

> **"*A. Amalgamation of Cogent Hospitality Private Limited, Comax Hospitality Private Limited and Stellar Concepts Private Limited with Trimex Foods Private Limited***
>
> *i. The Transferor Companies and the Transferee Company are engaged in similar and/or complementary businesses and their proposed Amalgamation pursuant to this Scheme will contribute to furthering and fulfilling the objectives and business strategies of the Transferor Companies and the Transferee Company No.1 thereby accelerating growth, expansion, and development of the respective businesses through the Transferee Company No.1. The Amalgamation will enhance synchronization between existing businesses and services being offered by the Transferor Companies and the Transferee Company No.1 and enable the Transferee Company to provide better business and service offerings to customers resulting in increased value proposition. The Amalgamation will thus enable further expansion of the Transferee Company No.1 and provide a strong and focused base to undertake the business more advantageously. Further, this Amalgamation would bring concentrated management focus, integration, streamlining of the management structure, seamless implementation of policy changes and shall also help enhance the efficiency and control of the Transferee Company No.1.*

ii. The consolidation of operations of the Transferor Companies and the Transferee Company No.1 by way of Amalgamation will lead to a more efficient utilization of capital, administrative and operational rationalization and promote organizational efficiencies. It will prevent cost duplication that can erode financial efficiencies and the resultant operations will be more cost-efficient with the achievement of reduction in overheads and improvement in various other operating parameters. This Scheme would result in efficient utilization of capital and creation of a consolidated value base for future growth of the Transferee Company No.1.

iii. The Amalgamation of Transferor Companies and Transferee Company No.1 will create an economic and operational structure which is more desirable to investors.

iv. The Transferee Company No.1 is desirous of consolidating the assets and liabilities of the Transferor Companies pursuant to amalgamation. Consolidating the assets and liabilities of the Transferor Companies and the Transferee Company No.1 would streamline the corporate structure by consolidating multiple entities and enable efficiency in operations and processes through reduction in legal and regulatory compliances and related administrative costs.

v. This Scheme would be in the interest of the Transferor Companies and the Transferee Company No.1, and their respective shareholders, creditors, customers, employees and other stakeholders and will not be prejudicial to the interest of any concerned shareholders or creditors or customers or employees or general public at large.

vi. In view of the aforesaid, the Board of the Transferor Companies and Transferee Company No.1 have considered and proposed the Amalgamation of the Transferor Companies with and into the Transferee Company No.1 in order to benefit stakeholders of Transferor Companies and Transferee Company No.1.

B. Transfer and vesting of Paul Undertaking of Trimex Foods Private Limited into Tres Bon Eats Private Limited by way of Slump Sale

i. The primary objective of the Slump Sale is to effect the transfer and vesting of the entire Paul Undertaking, including assets, liabilities, employees, licenses and contracts of Transferee Company No.1 to Transferee Company No.2 on a going concern basis, ensuring continuity of business operations with minimal disruption.

ii. Post Slump Sale, Paul Undertaking of the Transferee Company No.1 will have a differentiated strategy and will operate inter alia under different market dynamics and growth trajectory. Accordingly, Transferee Company No.1 to simplify the economic and operational structure and to independently focus on Paul Undertaking is transferring the said undertaking to the Transferee Company No.2. Further, the brand identity and operations require separate entity structure with consolidation of operations.

iii. The proposed reorganization pursuant to the Scheme will unlock the value and create enhanced value for shareholders, create greater visibility on performance of each business and allow focused strategy in operations, which would be in the interest of all the stakeholders. Paul Undertaking will have independence to grow faster in the fast-changing and driven environment.

iv. The Paul Undertaking will benefit from focused management, reduced duplication of efforts, and improved cost efficiencies under operational framework of the Transferee Company No.2 by creating synergies in businesses.

v. The proposed reorganization will create an economic and operational structure which would provide flexibility to investors who seek specific economic and operational participation.

vi. The Scheme would be in the interest of the Transferee Company No.1 and Transferee Company No.2 and their respective shareholders, creditors, customers, employees and other stakeholders and will not be prejudicial to the interests of any concerned shareholders or creditors or customers or employees or general public at large.

vii. In view of the aforesaid, the Board of the Companies have considered and proposed the Scheme in order to benefit the stakeholders of the Companies. The Scheme of Arrangement is proposed for the aforesaid reasons. The Board of Directors and Management of the Applicant Companies is of the opinion that the proposed Scheme is in the best interest of these Companies, their Shareholders and other stakeholders.

7. It is submitted that all the Transferor Companies and the Transferee Companies are closely held un-listed private limited companies. The Applicant No. 5 is a step down wholly owned subsidiary of the Applicant No.4. All the Companies are Group Companies under common management and control.

8. The Applicant No. 1 is a closely held un-listed private limited Company and has 2 (two) Equity Shareholders. Both the Equity Shareholders have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. As on 30th September, 2024, the Applicant No.1 has 1 (one) Secured Creditor. The sole Secured Creditor has given Its Written Consent/NOC by way of Affidavit for the proposed Scheme of Arrangement. The list of Secured Creditor, duly certified by the Chartered Accountants, and its Consent Affidavit, in original, are enclosed herewith the present Application.

9. The Applicant No. 2 is a closely held un-listed private limited Company and has 2 (two) Equity Shareholders. Both the Equity Shareholders have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. As on 30th September, 2024, the Applicant No. 2 does not

have any Secured Creditor. As on 30th September, 2024, the Applicant No. 2 has 247 (two hundred and forty-seven) Un-secured Creditors for an aggregate value of Rs. 39,14,15,929.01. Out of the total 247 Un-secured Creditors, 19 (nineteen) Un-secured Creditors for an aggregate value of Rs. 36,47,00,475.51 and constituting over 93.17% of the total value of Un-secured Creditors of the Company, have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. The Consent Affidavits received are more than the requisite statutory majority of 90% of the total value required to approve the Scheme In terms of the provisions of Section 230(9) of the Companies Act, 2013. The list of Shareholders, Secured and Un-secured Creditors, duly certified by the Chartered Accountants, and their Consent Affidavits, in original, are enclosed herewith the present application.

10. The Applicant No. 3 is a closely held un-listed private limited Company and has 2 (two) Equity Shareholders. Both the Equity Shareholders have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. As on 30th September, 2024, the Applicant No. 3 has 2 (two) Secured Creditors. Both the Secured Creditors have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. As on 30th September, 2024, the Applicant No.3 has 6 (six) secured Creditors for an aggregate value of Rs. 21,97,86,383. Out of total 6 Un-secured Creditors, 5 (five) Un-secured Creditors for an aggregate value of Rs. 21,56,23,283 and constituting over 98.11% of the total value of Un-secured Creditors of the Company, have given the Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. The list of Shareholders, Secured and Un-secured Creditors, duly certified by the Chartered Accountants, and their Consent Affidavits, in original, are enclosed herewith with the present application.

11. The Applicant No. 4 is a closely held un-listed private Company and has 8 (eight) Equity Shareholders. All the Equity Shareholders have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of

Arrangement. As on 30th September, 2024, the Applicant No.4 has 1 (one) Secured Creditor. The sole Secured Creditor has given Its Written Consent/NOC by way of Affidavit for the proposed Scheme of Arrangement. As on 30th September, 2024, the Applicant No.4 has 455 (Four Hundred and Fifty-Five) Un-secured Creditors for an aggregate value of Rs. 10,86,47,372.02. Out of the total 455 Un-secured Creditors, 177 Unsecured Creditors for an aggregate value of Rs. 9,82,65,048.22 and constituting over 90.44% of the total value of Un-secured Creditors of the Company, have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. The Consent Affidavits received are more than the requisite statutory majority of 90% of the total value required to approve the Scheme In terms of the provisions of Section 230(9) of The Companies Act, 2013. The list of Shareholders, Secured and Un-secured Creditors, duly certified by the Chartered Accountants, and their Consent Affidavits, in original, are enclosed herewith with the present application.

12. The Applicant No. 5 is a closely held un-listed private limited Company. It Is a step down wholly owned subsidiary of the Applicant No.4. The Applicant No.5 has 2 (two) Equity Shareholders. Both the Equity Shareholders have given their Written Consents/NOC by way of Affidavit for the proposed Scheme of Arrangement. As on 21.01.2025, the Applicant No.5 does not have any Secured or Unsecured Creditor. The list of Shareholders, Secured and Un-secured Creditors, duly certified by the Chartered Accountants, and their Consent Affidavits, in original, are enclosed herewith with the present application.

13. The Status of the Shareholders, Secured Creditors and Un-secured Creditors of these Companies and Consent Affidavits obtained for the proposed Scheme is summarized in following tables: -

The Applicant No. 1:

Particulars	Total		Consent Affidavits Obtained		
	No.	Value INR	No.	Value INR	% of Total Value
Equity Shareholders	2	1,00,000	All	1,00,000	100.00%
Secured Creditors	1	83,18,200	1	83,18,200	100.00%
Un-secured Creditors[1]	4	16,48,50,801	4	16,48,50,801	100.00%

The Applicant No. 2:

Particulars	Total		Consent Affidavits Obtained		
	No.	Value INR	No.	Value INR	% of Total Value
Equity Shareholders	2	1,01,00,000	All	1,01,00,000	100.00%
Secured Creditors	Nil	Nil	Nil	Nil	N.A.
Un-secured Creditors[1]	247	39,14,15,929.01	19	36,47,00,475.51	93.17%[2]

The Applicant No. 3:

Particulars	Total		Consent Affidavits Obtained		
	No.	Value INR	No.	Value INR	% of Total Value
Equity Shareholders	2	1,00,000	All	1,00,000	100.00%
Secured Creditors	2	2,19,79,424	2	2,19,79,424	100.00%
Un-secured Creditors[1]	6	21,97,86,383	5	21,56,23,283	98.11%[2]

The Applicant No. 4:

Particulars	Total		Consent Affidavits Obtained		
	No.	Value INR	No.	Value INR	% of Total Value
Equity Shareholders	8	17,01,970	All	17,01,970	100.00%
Secured Creditors	1	40,32,47,892.01	1	40,32,47,892.01	100.00%
Un-secured Creditors[1]	455	10,86,47,372.02	177	9,82,65,048.22	90.44%[2]

The Applicant No. 5:

Particulars	Total		Consent Affidavits Obtained		
	No.	Value INR	No.	Value INR	% of Total Value
Equity Shareholders	2	1,00,000	All	1,00,000	100.00%
Secured Creditors	Nil	Nil	Nil	Nil	N.A.
Un-secured Creditors	Nil	Nil	Nil	Nil	N.A.

14. Vide order dated 22.04.2024 this Adjudicating Authority appointed Ms. Riya Palnitkar, Ld. Advocate, having Bar Registration No. D/9942/2024, E-mail- riya.palnitkar@covg.co.in Mobile No. 8103470763. The Court Commissioner was directed to verify the documents and submit a report within two days.

15. The Court Commissioner after going through the documents and records has filed her report dated 29.04.2025 by way of affidavit and has not objected to the proposed scheme of amalgamation.

16. The Applicant Company No. 1/Transferor Company No.1 has 2 Equity Shareholders, 1 Secured Creditors and 4 Unsecured Creditors as per the records. The Court Commissioner has verified that all Equity Shareholders, Secured and Unsecured Creditor of Applicant No.1 Company have given consent.

17. The Applicant Company No. 2/Transferor Company No.2 has 2 Equity Shareholders, Nil Secured Creditors and 233 Unsecured Creditors as per records. The Court Commissioner has verified that all equity shareholders, have given their consent, 19 out of 233 Unsecured Creditors constituting 93.36% of Applicant No. 2 have given their consent.

18. The Applicant Company No.3/Transferor Company no.3 has 2 Equity Shareholders, 2 Secured Creditors and 6 Unsecured Creditors as per records. The Court Commissioner has verified that all equity shareholders, secured creditors have given their consent, 5 out of 6 Unsecured Creditors constituting 98.11% of Applicant No. 3 have given their consent.

19. The Applicant Company No.4/Transferee Company No.1 has 8 Equity Shareholders, 1 Secured Creditors and 455 Unsecured Creditors as per records. The Court Commissioner has verified that all equity shareholders, secured creditors have given their consent, 177 out of 455 Unsecured Creditors constituting 90.44% of Applicant No. 4 have given their consent.

20. The Applicant Company No.5/Transferee Company No.2 has 2 Equity Shareholders, Nil Secured Creditors and Nil Unsecured Creditors as per records. The Court Commissioner has verified that all equity shareholders of Applicant No. 5 have given their consent.

21. In the present application a separate disclosure affidavit under section 230(2) of the Companies Act 2013 is also filed to show that no investigation or proceeding under the Companies Act, 2013 or under the erstwhile Companies Act, 1956 is pending neither against the Transferor Company nor Transferee Company involved in the present Scheme of Amalgamation.

22. Having heard the submissions made by Ld. Counsel and having perused the Report filed by Court Commissioner, and records as well as the documents placed on record, we allow the following prayers:

"a. Dispense with the requirement of convening meetings of Equity Shareholders of the Applicant Companies.

b. Dispense with the requirement of convening meetings of Secured Creditors of the Applicant No. 1, 3 & 4.

The Applicant No.2 & 5 do not have any Secured Creditor.

c. Dispense with the requirement of convening meetings of Un-secured Creditors of the Applicant No.1 to 4.

The Applicant No.5 does not have any Un-secured Creditor.

d. Direct service of notice of the present Application on (a) the Central Government through the office of the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, NCT of Delhi and Haryana, Ministry of Corporate Affairs, New Delhi; (c) The Official Liquidator, New Delhi; and (d) the Income Tax Department."

23. The prayer sought in the present application bearing **CA.CAA-30(ND)/2025** stands **allowed** on the aforesaid term and present application is accordingly **disposed of**.

24. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

25. Let copy of the order be served to all the parties.

Sd/-	**Sd/-**
(DR. SANJEEV RANJAN)	**(BACHU VENKAT BALARAM DAS)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**